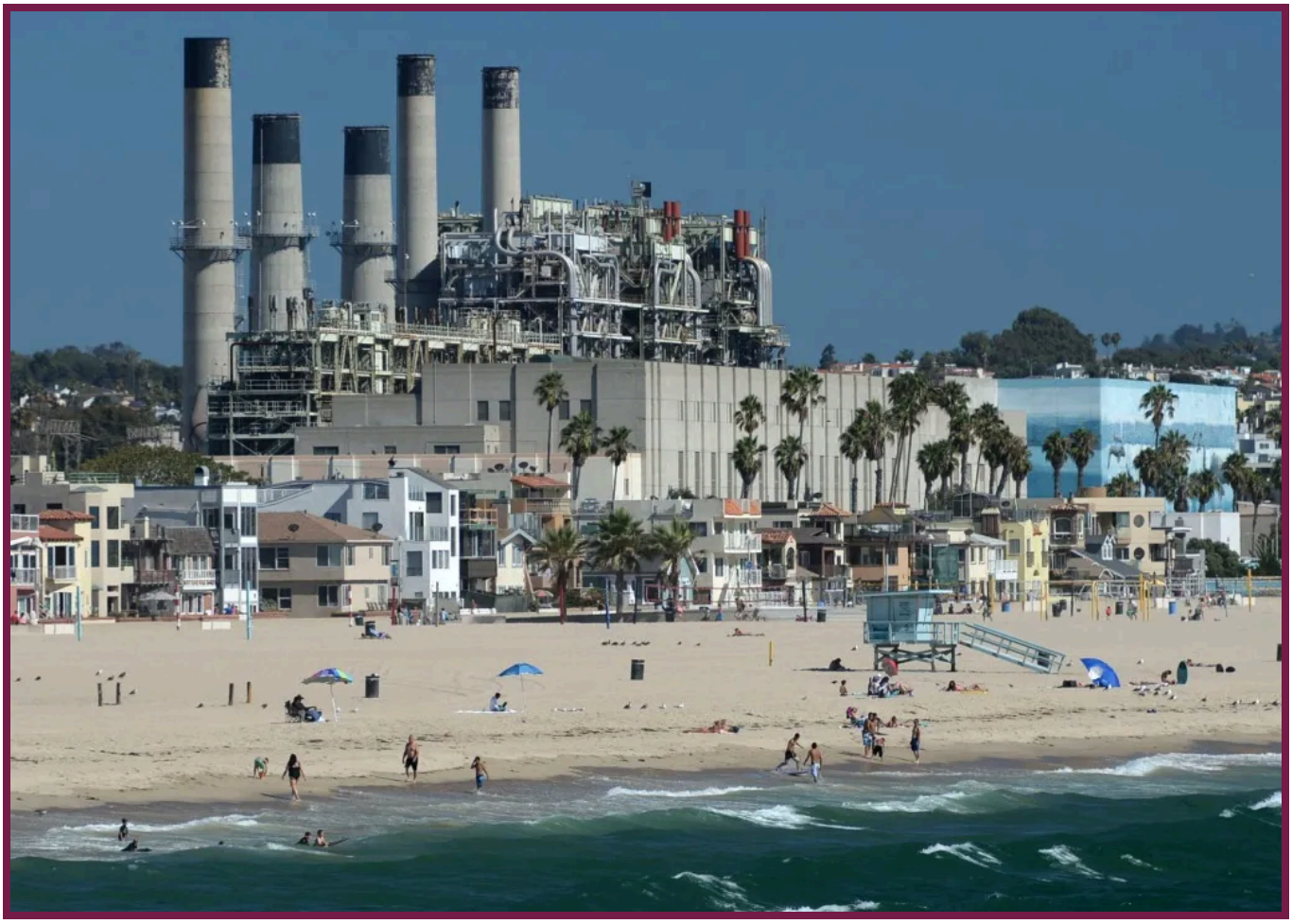
THE RIGHT TO POWER

AP U.S. Government and Politics Policy Investigation

Driving Question: Should access to clean and affordable energy be considered a natural right?



The Challenge

Imagine that you have been selected as a policy advisor to a National Commission on Energy Rights. **Your job is to determine whether access to clean and affordable energy should be considered a natural right in the United States.** You are not simply being asked whether clean energy is a good idea. You must use political science, constitutional principles, political ideology, current events, and evidence to determine what the US government should—and should not—do.

Why This Matters

- [ ] Electricity demand is rising, including from AI, data centers, electric vehicles, and electrification.
- [ ] Households continue to face questions about the affordability of electricity and gasoline.
- [ ] States and the federal government often disagree about energy and environmental policy.
- [ ] The United States relies on both private companies and government agencies to produce, regulate, and distribute energy.
- [ ] Political parties and ideologies disagree about the proper role of government in energy markets.
- [ ] Extreme weather, international conflict, and changes in energy markets can affect reliability and prices.

The Key Question You Must Think About

A natural right is not automatically the same thing as a government-provided service. Energy may be essential to modern life, but that does not automatically mean the Constitution requires the government to provide it. Your job is to examine that tension.

The Essential Question You Are Attempting To Answer

Is access to clean, affordable energy necessary for achieving equality in a developed society?

Dena

PART I - What Is a Natural Right?

Use the Declaration of Independence, John Locke, and your Unit 1 knowledge.

1. What is a natural right?

These are rights inherent to all people that are not dependent on the government, in other words, inalienable rights that an individual is born with that aren't granted by the government.

2. According to Locke, what is the US government's responsibility toward natural rights?

The US government's responsibility toward natural rights is to protect citizens'natural rights such as life, liberty, and property. If a government is unjust and unable to carry out these responsibilities, citizens have the right to rebel.

3. What does the Declaration of Independence say about natural rights?

The Declaration of Independence states that rights are inherent in human beings, not dependent on government.

4. Does the Constitution explicitly identify energy, electricity, housing, food, or healthcare as natural rights?

The Constitution does not explicitly identify energy, electricity, housing, food or healthcare as natural rights.

5. If something is necessary for people to exercise their existing rights, does that automatically make access to that resource a natural right? Explain.

It does not automatically make access to that resource a natural right because it isn't necessary in order for someone to exercise their liberty and but it would force another individual to have to work to provide it which would interfere with their own natural right and freedom.

Caitlyn

PART II - What Does the US Government Have the Power to Do?

For each concept below, explain how it could support or limit government action on energy policy.

AP Gov Concept	How does it apply to energy policy?
Natural Rights	**Support** government action by classifying affordable, clean energy as a natural right.
Social Contract	**Support** government by classifying energy as right that the government is obligated to protect
Popular Sovereignty	**Support** government by establishing that the government should provide energy as it is needed to sustain life and health within everyday human life.
Limited Government	**Limits** government by restricting interference within the free market, classifying energy as a commercial good.
Federalism	Both **limits** and **supports** government by essentially dividing the government action on energy policy between the federal government and the state/local governments.
Enumerated Powers	**Limits** government by explicitly defining what the federal government can and cannot do.
Necessary and Proper Clause	**Supports** government by potentially classifying energy policy as an act that is necessary and proper for the United States.
Commerce Clause	**Supports** government by giving them the broad right/authority to regulate forms of commerce.
Supremacy Clause	Both **supports** action of the federal government but **limits** the actions of state governments.
Separation of Powers / Checks and Balances	Both **supports** and **limits** government action by separating the means in which energy policies can be created and enacted while ensuring not one branch has primary control.
Judicial Review	**Limits** government action by determining which actions may be unconstitutional and therefore unable to be passed/enacted.

Required Constitutional Connections

Use at least THREE of the following in your final argument/presentation of information - You simply need to reference them correctly.

- [x] Declaration of Independence
- [x] Federalist No. 10
- [x] Federalist No. 51
- [ ] Federalist No. 78
- [ ] Brutus No. 1
- [ ] McCulloch v. Maryland
- [ ] U.S. v. Lopez
- [ ] The Necessary and Proper Clause
- [ ] The Commerce Clause
- [ ] The Supremacy Clause

Required interdisciplinary connections

How will my English / ERWC / AP Literature element integrated into analysis, argument, and/or conclusion.

Reading *Into the Wild* in my ERWC class brings audiences on Chris McCandless' journey of self-discovery in which he absolutely rejects technology and energy. This brings attention to the cruel reality of nature's harsh and unforgiving spirit. ERWC provides the reasoning and context as to why clean, affordable energy is necessary in today's world.

How will my AP Calculus BC / Math model be integrated into analysis, argument, and/or conclusion.

Within math, different graphs, tables, and other forms of data can be analyzed to observe the energy, social and financial divide between those who do and don't have energy, and predictions for energy use and consumption. These numbers are important for determining who needs energy, how to give it, and its overall impact on society.

PART III - The Federalism Problem - Daniela

Suppose Congress passes a law guaranteeing every American household access to a minimum amount of affordable, clean electricity. Who should be responsible for making it work?

Level / Actor	What should it control or be responsible for?
Federal Government	The federal government should be responsible for overseeing interstate commerce, directing financial funding as well as enforcing the law.
State Governments	State governments would serve to implement, regulate, and scale the program produced from this law, assisting the federal government heavily.
Local Governments	Local governments would serve to guarantee a baseline for the law and program under the federal government and state governments.
Private Energy Companies	Private energy companies would serve as the operational aspect of the law and the program produced, relying on their compliance and services required to meet the mandate.

Then answer:

When federal and state energy policies conflict, which level of government should have the final say? Why?

When federal and state energy policies conflict, the federal government should have the final say. Energy is a resource that should be equally accessible to all Americans nationwide, if various states maintain different positions, it can eventually lead to an unequal access of power throughout various states. The federal government also holds implied powers under the constitution, allowing them to carry out responsibilities even if not explicitly stated within the constitution.

PART IV - Political Ideology and Energy Policy - Daniela

Political ideology affects how people define a problem, what they believe government should do, and what trade-offs they are willing to accept. Research the perspectives below. Do not rely on stereotypes; use actual policy positions, statements, legislation, or government actions.

Perspective	Likely priorities	Evidence / policy example
Conservative	Conservatives would most likely prioritize minimizing regulatory burdens, protecting grid reliability, and preventing cost-shifting	National Environment Policy Act (NEPA) and the Clean Air Act serves as evidence for this position.
Liberal	Liberals would likely prioritize implementing, and expanding the policy while ensuring costs would not be increased on regular households.	Center for American Progress (CAP) & initiative for energy justice policy framework
Libertarian	Priorities would likely be focused on dismantling government energy monopolies, and fighting market distortions.	Deregulation of the Texas electricity market (ERCOT) - lowered cost without relying on federal mandates
Progressive	Progressives will likely aim their priorities towards implementation equality, grid structural reform and eliminating corporate profiteering.	Congressional Progressive Caucus - provide legislative priorities

Compare the perspectives: How might two people who agree that energy is important still disagree about what the US governments should do?

While two people may agree that energy is important, they may disagree on how the governments should approach and implement solutions. For example, one person may want the government to prioritize the maintenance of costs for regular households while another person may aim to prioritize to limit the effect of energy monopolies. Along with this, people may disagree on how much of a role the government should play within this aspect, and more specifically the specific government that should have the most control (state vs. federal), and to what extent.

PART V - Current Energy Events - Emily

Choose at least FOUR current energy stories. You must use at least TWO different perspectives or types of sources. Your evidence should help you answer the driving question, not simply provide background information.

Story / Date	What happened?	Government / political issue	How does it affect your argument?
AI Data Centers Shifting Grid Burden (October 2026)	Tech companies build huge AI data centers and massive energy demand threatens to spike household utility rates.	- Corporate regulation - balancing big tech's power needs versus residential cost protections	It proves inequality risk. Without regulation, massive corporations drive up energy costs for average citizens.
CA Income-Based Bills (Mid 2026)	California changes utility billing rules and adds fixed monthly fees based entirely on household income levels.	- Distributive justice Debate over using utility bills as a progressive economic tax	-ties directly to equity -shows state governments treating basic energy access as an explicit economic right
EPA Power Plant Lawsuit (late 2026)	- 21 states sue the EPA in federal court -Trying to block the rolling back of strict carbon pollution rules.	- federalism -clash between federal deregulation goals and state-level green mandates	-highlights tradeoffs -conflict between short-term fossil fuel affordability and long-term health equity
LIHEAP Funding Fight (Early 2026)	- congress fights over federal LIHEAP utility aid - Program narrowly avoids deep budgets cuts	- social safety net -debate over federal funding for basic human survival needs	-supports necessity and proves that low-income citizens need government energy aid just to survive in society

Suggested Current Issues to Investigate

- ☐ AI and data centers increasing electricity demand
- ☐ Who should pay for new electrical-grid infrastructure needed by large energy users?
- ☐ California's growth in solar power and battery storage
- ☐ California's efforts to balance clean energy, reliability, and affordability
- ☐ Federal and state disagreements over environmental and energy policy
- ☐ Fossil-fuel production versus renewable-energy development
- ☐ Energy prices and the effect of international conflict on oil and gasoline prices
- ☐ Nuclear power, natural gas, and the debate over reliable energy
- ☐ Energy assistance for households that struggle to pay utility bills

Current Resource Starting Points

- ❖ **U.S. Energy Information Administration — Electricity:** https://www.eia.gov/electricity/
- ❖ **Federal Energy Regulatory Commission — News:** https://www.ferc.gov/news-events/news
- ❖ **California Energy Commission — News:** https://www.energy.ca.gov/news
- ❖ **California Public Utilities Commission — News & Updates:** https://www.cpuc.ca.gov/news-and-updates
- ❖ **Reuters — Energy:** https://www.reuters.com/business/energy/
- ❖ **Associated Press — Business / Energy:** https://apnews.com/hub/business

You may use additional credible sources. Check the date, author, evidence, and perspective of every source.

PART VI - Build Your Evidence

Your final argument must include ALL of the following:

- [ ] At least ONE foundational document or thinker from Unit 1.
- [ ] At least ONE constitutional concept or Supreme Court case.
- [ ] At least ONE political ideology or political-party connection.
- [ ] At least FOUR current-event sources.
- [ ] At least TWO pieces of quantitative evidence or data.
- [ ] At least ONE counterargument.
- [ ] A specific policy recommendation.

Your Two Most Important Data Points

Data / statistic	Source	Why does this matter?
1 in 4 low-income U.S. households must spend over 15% of their total annual income purely on energy bills	American Council for an Energy-Efficient Economy (ACEEE)	forces harmful trade-offs between electricity, food, and medicine
Low-income energy burden in 8.6% nearly triple higher-income homes (3%)	NCSL	proves structural economic inequality disproportionately penalizes the poor

PART VII - Take a Position

Choose the position that best represents the evidence you found. Your original position might change as you dig:

A. YES — Access to clean and affordable energy should be considered a natural right.

B. NO — Energy is important, but it should not be considered a natural right.

C. IN BETWEEN — Energy should be treated as a basic public necessity, but not necessarily as a natural or constitutional right.

My position:

Energy should be treated as a basic public necessity, but not necessarily as a natural or constitutional right.

My strongest reason is:

Natural rights are protections from government overreach, not guarantees to material goods. However, because power is vital for survival, the state must regulate and subsidize it as a public necessity to ensure baseline societal equality.

My secondary reason is:

Declaring an energy a constitutional right creates legal gridlock over infrastructure funding. Treating it as a public necessity allows flexible, state-level policy and subsidies to adapt to changing technology and economic needs.

caitlyn

PART VIII - Design a Policy, Amendment, Mock Congress, or Campaign

Your argument is incomplete unless you explain what the US government should actually do.

1. What should the federal government do?

The federal governments should fund private energy companies to provide clean energy to U.S. citizens.

2. What should state governments do?

State governments should aid the federal government in implementing and regulating the policy.

3. What should local governments do?

Local governments should guarantee a baseline for the policy and assist federal and state governments.

4. What should private energy companies be required or allowed to do?

Private energy companies should be allowed to continue distributing and transporting energy as usual, ensuring the energy market is not negatively impacted.

5. Who should pay for your policy?

taxes? federal budget?

Our policy will be paid for by a series of federal funds, state funds, and independent investments.

6. How would your policy protect affordability?

setting aside a budget/federal aid aside from taxes?

Funding will not affect taxes or utility rates. Instead, funding will be sourced from federal and state governments as well as individual investments to help install solar panels aimed at assisting those most impacted by energy burden.

7. How would your policy protect reliability?

Our policy will protect reliability by safely transferring newly generated clean energy specifically to those who have high energy burden and/or require increased energy usage.

8. How would your policy address environmental concerns?

By environmentally reviewing potential areas to install solar farms, this newly generated renewable energy will ensure that no habitats are destroyed and the energy is safely generated.

9. What limits should exist on government power?

The federal government will not be able to intervene directly into community-based issues, meaning state/local programs will be handled by state/local governments.

10. What constitutional challenge could someone make against your proposal?

By arguing that clean, affordable energy is not a public necessity (or required for quality of life), one could argue that providing federal support/aid would not be an implied power and therefore unconstitutional.

PART IX - The Political Reality

Your policy has been introduced in Congress. It now needs political support.

1. Which political parties or ideological groups would likely support your proposal? Why?

Liberals would be more likely to support our proposal, advocating for equal-access to clean energy for all U.S. citizens.

2. Which groups would oppose it? Why?

Conservatives would potentially oppose our proposal, as providing additional energy for those most affected by the energy burden might decrease the amount of customers for energy companies.

3. Which interest groups, businesses, environmental organizations, labor groups, or citizens might influence the debate?

Energy companies would have the biggest influence in this debate, aiming to make profit while also providing energy to so many people through the implementation of this policy.

4. How might public opinion affect the proposal?

Public opinion heavily affects the proposal. As stated in the current events used, many are in support of lowering the utility bill rates while protecting the environment. Our proposal addresses both of these popular viewpoints.

5. What compromise might be necessary for the policy to pass?

In order for the policy to pass, committed amounts of funding must be given towards installing solar panels. As these installments can be expensive, other funding programs might be decreased.

6. Additional notes:

* Our policy will install solar panels on vacant areas to help support households that are most impacted by energy burden.
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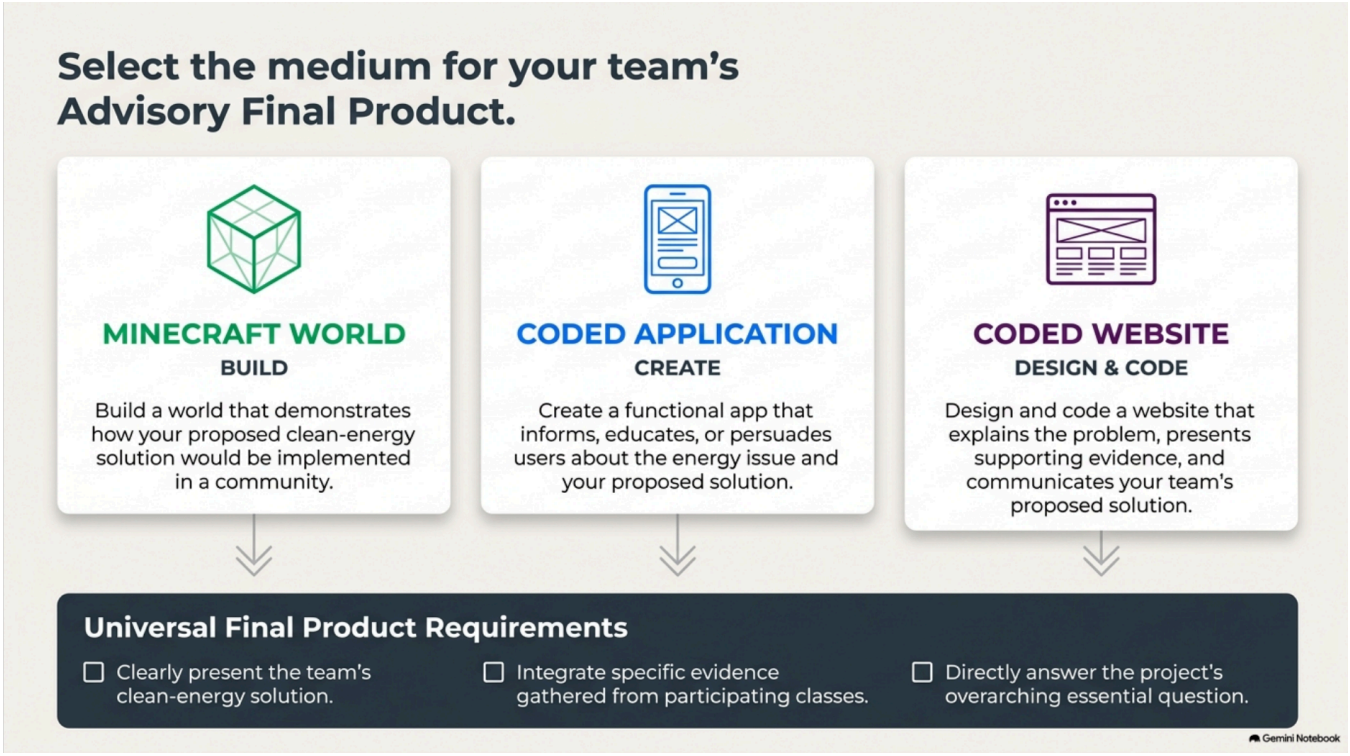
FINAL GOVERNMENT AND POLITICS PRODUCT - Energy Rights Policy Brief, Debate, Map, Or System Design

Create a 1.5 - 2 page policy brief that answers the driving question and makes a specific recommendation.

Your policy brief, use this checklist. It should include:

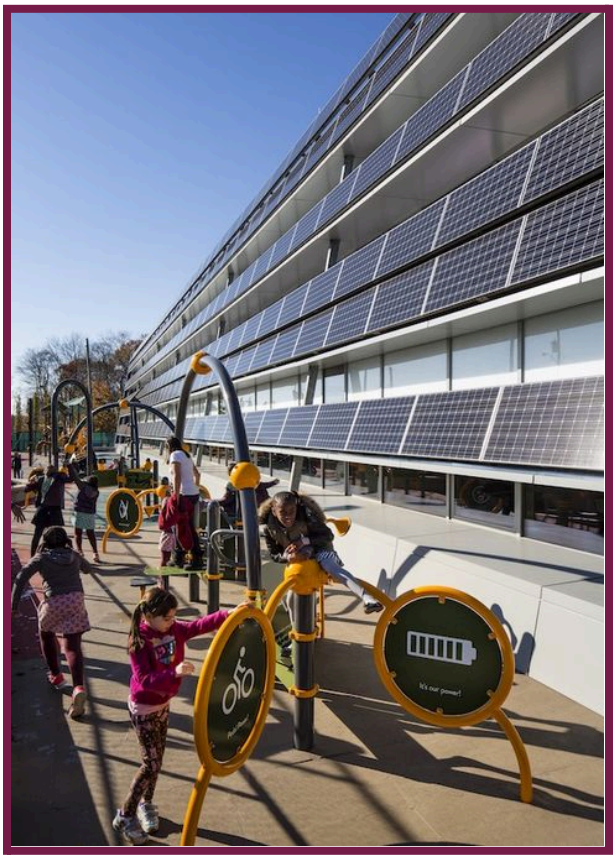
- ☐ A clear answer to the driving and essential question.
- ☐ A discussion of natural rights and the purpose of government as it relates to modern energy needs.
- ☐ At least THREE Unit 1 foundational or constitutional connections.
- ☐ At least ONE Supreme Court case or constitutional clause.
- ☐ A federalism analysis.
- ☐ A political ideology / political-party analysis.
- ☐ At least FOUR current sources.
- ☐ At least TWO pieces of quantitative evidence. This does not need to be additional, and can be part of your FOUR sources. Ex. link
- ☐ A counterargument and rebuttal.
- ☐ A specific, realistic policy or planning recommendation.
- ☐ An explanation of constitutional limits and possible challenges.
- ☐ **English / ERWC / AP Literature element integrated into analysis, argument, and/or conclusion.**
- ☐ **AP Calculus BC / Math model integrated into analysis, argument, and/or conclusion.**

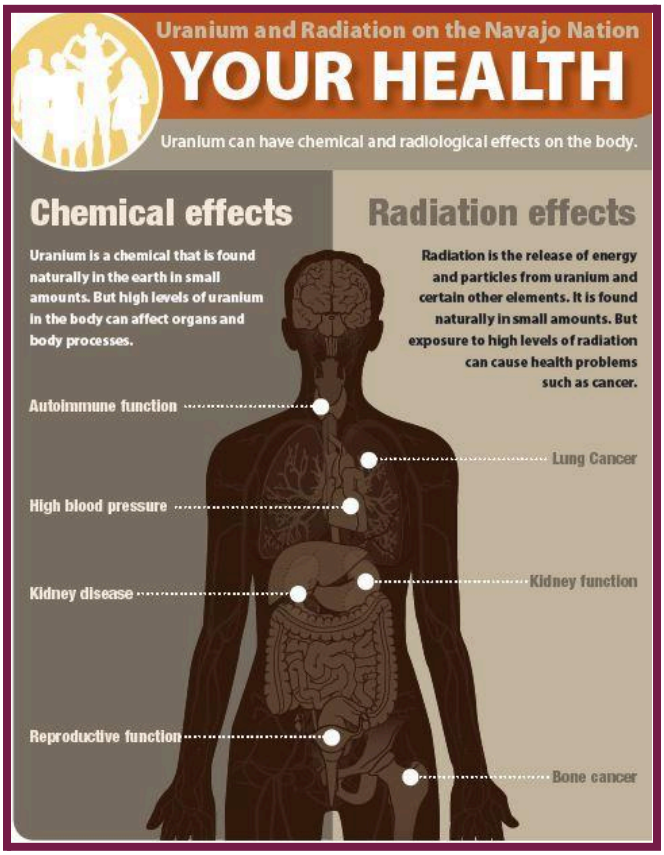
- ☐ CTE requirement met





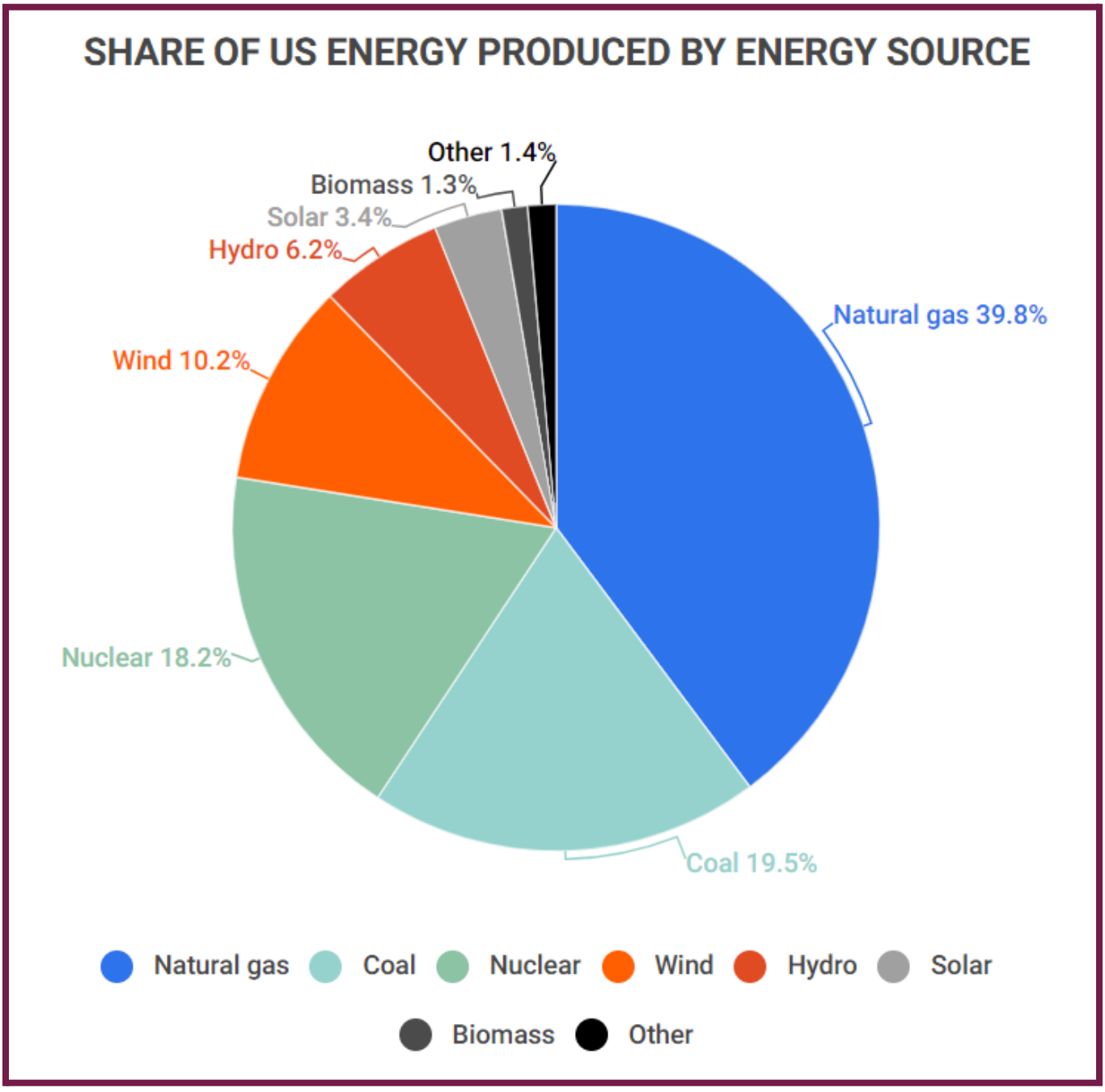





Uranium and Radiation on the Navajo Nation
YOUR HEALTH
Uranium can have chemical and radiological effects on the body.
Chemical effects
Uranium is a chemical that is found naturally in the earth in small amounts. But high levels of uranium in the body can affect organs and body processes.
Radiation effects
Radiation is the release of energy and particles from uranium and certain other elements. It is found naturally in small amounts. But exposure to high levels of radiation can cause health problems such as cancer.
Autoimmune function
Lung Cancer
High blood pressure
Kidney disease
Kidney function
Reproductive function
Bone cancer



2025 Data


SHARE OF US ENERGY PRODUCED BY ENERGY SOURCE
Other 1.4%
Biomass 1.3%
Solar 3.4%
Hydro 6.2%
Wind 10.2%
Natural gas 39.8%
Nuclear 18.2%
Coal 19.5%
Natural gas
Coal
Nuclear
Wind
Hydro
Solar
Biomass
Other